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Demurrer to Second Amended Complaint and Motion to Strike

Moving Party: Defendant CBRE, Inc.

Responding Party: Plaintiff Yovanni Gonzalez Barrales

RULING

The court considered the moving papers, opposition, and reply. Moving Defendant's special demurrer to Plaintiff's SAC is SUSTAINED in its entirety with leave to amend as to the fourth cause of action only. Moving Defendant's motion to strike is GRANTED with leave to amend.

PROCEDURAL BACKGROUND

On January 10, 2025, Plaintiff Yovanni Gonzalez Barrales ("Plaintiff") filed a complaint against Defendants South Bay Galleria, Queensland Investment Corporation, L Catterton, and DOES 1 through 100, inclusive, alleging four causes of action for: (1) Negligence; (2) Premises Liability; (3) Negligent Infliction of Emotional Distress; and (4) Public Nuisance.

On May 28, 2025, Plaintiff's action against Defendant L Catterton was dismissed without prejudice. On the same day, Plaintiff filed an amendment to his complaint identifying DOE 1 as Defendant QIC US Investment Services Inc.

On June 2, 2025, Plaintiff filed an amendment to his complaint identifying DOE 2 as Defendant South Bay Center SPE, LLC.

On September 18, 2025, Plaintiff's action against Defendant QIC US Investment Services Inc. was dismissed without prejudice.

On February 5, 2026, Plaintiff filed an amendment to his complaint identifying DOE 12 as Defendant Allied International Security, Inc.

On February 6, 2026, Plaintiff filed an amendment to his complaint identifying DOE 11 as Defendant CBRE, Inc.

On February 9, 2026, Defendant South Bay Center SPE, LLC filed a motion to strike.

On May 18, 2026, Plaintiff filed a first amended complaint against Defendants South Bay Galleria, Queensland Investment Corporation, L Catterton, and DOES 1 through 100, inclusive, alleging the same four causes of action for: (1) Negligence; (2) Premises Liability; (3) Negligent Infliction of Emotional Distress; and (4) Public Nuisance.

On July 7, 2026, Plaintiff filed a second amended complaint ("SAC") against Defendants South Bay Galleria, QIC Investment Services Inc., SBC SPE LLC, KW-F SBG Owner LLC, KW-F SBG LLC, South Bay Galleria JV LLC, South Bay Galleria Member LLC, LCRE South Bay Holdings Inc., South Bay Galleria Reit Inc., South Bay Holdings II Inc., CBRE, Inc., Allied International Security, Inc., and DOES 13 through 100, inclusive (collectively, "Defendants"), alleging the same four causes of action.

On July 8, 2026, Defendant CBRE, Inc. ("Moving Defendant") filed the instant demurrer and motion to strike. On July 23, 2026, Plaintiff filed an opposition. On July 29 and 30, Moving Defendant filed its reply briefs.

FACTUAL BACKGROUND

Plaintiff alleges that on May 11, 2023, Plaintiff was at the South Bay Galleria, located at 1815 Hawthorne Boulevard, in Redondo Beach, California (the "Premises"), when Plaintiff was shot in the ankle. (SAC, ¶ 1.) Plaintiff alleges that as a result, he has suffered severe physical injuries and emotional trauma. (SAC, ¶ 1.) Plaintiff alleges that the Premises have been "long known for rampant criminal activity," which has created a dangerous environment for invitees including Plaintiff. (SAC, ¶ 16.) Plaintiff alleges that Defendants were aware of the ongoing criminal activity at the Premises but failed to implement sufficient security measures. (SAC, ¶ 17.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Moving Defendant demurs to the third and fourth causes of action in Plaintiff's SAC. Moving Defendant argues that Plaintiff's SAC is fatally uncertain because Plaintiff improperly refers to "Defendants" collectively, without specifying the actions of each Defendant. Moving Defendant argues that Plaintiff's third cause of action for Negligent Infliction of Emotional Distress fails because it is duplicative of Plaintiff's Negligence cause of action. Next, Moving Defendant argues that Plaintiff's fourth cause of action for Public Nuisance fails because Plaintiff has not alleged any duty on Moving Defendant's behalf or any specific conduct by Moving Defendant. Moving Defendant also argues that Plaintiff's fourth cause of action is duplicative of his first cause of action for Negligence and argues that Plaintiff has not alleged facts showing that he suffered an injury that is different from that suffered from the general public.

Moving Defendant moves to strike Plaintiff's prayer for punitive damages and the supporting allegations in paragraphs 73-78 of Plaintiff's SAC on the grounds that the SAC does not include any specific allegations regarding Moving Defendant's conduct or role.

Opposing Party's Argument

Plaintiff argues that he has sufficiently alleged facts identifying Moving Defendant's role and conduct as the property manager of the Premises. Plaintiff argues that he may plead collective conduct of multiple Defendants who are alleged to have jointly owned, operated, managed, and controlled the Premises as one another's agents. Plaintiff argues that the SAC alleges sufficient facts to support his third and fourth causes of action, because Plaintiff alleges that Defendants created and maintained an ongoing dangerous condition at the Premises by knowingly managing the property despite a pattern of violent criminal activity.

Plaintiff argues that the SAC sufficiently alleges that Defendants had actual and constructive notice of recurring violent criminal activity, chose to maintain inadequate security despite their knowledge of the safety risk, and prioritized minimizing costs, which is sufficient to support Plaintiff's request for punitive damages.

Reply Argument

Moving Defendant reiterates its argument that Plaintiff's SAC does not include any specific allegations regarding Moving Defendant's actions, obligations, or role, and Plaintiff's four causes of action are broadly alleged against "all Defendants" without attributing conduct to particular Defendants, rendering the SAC fatally uncertain. Moving Defendant also restates its arguments that Plaintiff's third cause of action for Negligent Infliction of Emotional Distress is duplicative of his Negligence cause of action, and Plaintiff has failed to allege sufficient facts to establish a Public Nuisance cause of action.

As to its motion to strike, Moving Defendant reiterates its argument that Plaintiff seeks punitive damages without alleging facts that could establish oppression, fraud, or malice on the part of Moving Defendant.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Moving Defendant's counsel declares that on June 11, 2026, she sent Plaintiff's counsel a meet and confer letter, to which Plaintiff's counsel responded by email. (Zuckowich Decl., ¶¶ 3-4.) Moving Defendant's counsel declares that counsel responded to Plaintiff's counsel's email on the same day, but Plaintiff's counsel did not respond. (Zuckowich Decl., ¶ 5.)

Because the parties have not met in person, by telephone, or by video conference, the court finds that the meet and confer requirements have not been met. However, the court will still discuss the merits of Moving Defendant's demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B. Uncertainty: Code of Civil Procedure Section 430.10(f)

California Code of Civil Procedure Section 430.10(f) provides that a party may object to the complaint filed against them by demurrer to the pleading on the grounds that "the pleading is uncertain," a term which "includes ambiguous and unintelligible." (Code Civ. Proc. Section 430.10(f).) A demurrer for uncertainty will only be sustained where the defendant cannot reasonably respond to the complaint, such that the defendant cannot reasonably determine what claims are directed against her, or what issues must be admitted or denied. (Khoury, *supra*, 14 Cal.App.4th at 616.)

However, if a complaint does not properly distinguish between multiple defendants, such that it is not clear which factual allegations are made as to which parties, the complaint fails for ambiguity. (See *Hawley Bros. Hardware Co. v. Brownstone* (1899) 123 Cal. 643, 646-647.) Allegations made against multiple defendants are fatally uncertain where plaintiff alleges the same harm against multiple defendants but makes no effort to either apportion their liability or show why it cannot be apportioned in the complaint. (See *Landau v. Salam* (1971) 4 Cal.3d 901, 909.)

Here, Moving Defendant demurs to Plaintiff's third and fourth causes of action on the grounds that the SAC improperly refers to all "Defendants" collectively, without distinguishing which conduct is attributable to which individual Defendant. The court agrees.

Throughout the entire SAC, Plaintiff refers generally to "Defendants," though each of Plaintiff's causes of action is alleged against twelve named Defendants. As to Moving Defendant, Plaintiff only alleges that Moving Defendant "provided property management, operational, maintenance, leasing, and/or management services for the Premises." (SAC, ¶ 7.) Plaintiff's SAC directly states that all Defendants are collectively referred to as "Defendants" throughout the SAC. (SAC, ¶ 9.)

The court finds that Plaintiff has made no attempt to distinguish between the conduct of each Defendant, such that Moving Defendant cannot reasonably respond to the SAC. As observed by Moving Defendant, the SAC does not contain any allegations pertaining specifically to the conduct of Moving Defendant.

Accordingly, Moving Defendant's special demurrer for uncertainty is SUSTAINED in its entirety.

C. Failure to State a Cause of Action: Code of Civil Procedure Section 430.10(e)

a. Negligent Infliction of Emotional Distress

A "merely duplicative pleading which adds nothing to the complaint by way of fact or theory" is not sufficient to survive demurrer. (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135.)

Plaintiff asserts a claim for “Negligent Infliction of Emotional Distress.” This purported cause of action does not state a separate basis for a claim in addition to the Negligence cause of action. Therefore, the demurrer to the third cause of action is SUSTAINED.

b. Public Nuisance

“Anything which is injurious to health...or is indecent, or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property...is a nuisance.” (Civil Code Section 3479.) “A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal.” (Civil Code Section 3480.) “To qualify, and thus be enjoined, the interference [with collective social interests] must be both substantial and unreasonable.” (Birke v. Oakwood Worldwide (2009), 169 Cal. App. 4th 1540, 1547, emphasis in original.)

Here, Plaintiff has alleged facts regarding only one incident of criminal conduct: the shooting of Plaintiff. Each of the other allegations of crime within the complaint are either conclusory or are unrelated to the property controlled by Defendants.

Accordingly, the demurrer to the fourth cause of action is SUSTAINED.

D. Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Moving Defendant moves to strike Plaintiff’s prayer for punitive damages and the supporting allegations in paragraphs 73-78 of the SAC on the grounds that Plaintiff has not alleged specific facts showing that Moving Defendant acted with malice, oppression, or fraud or that the conduct of any of Moving Defendant’s agents were ratified by the corporation.

The court refers to its previous discussion in which it found that Plaintiff has not alleged any specific conduct by Moving Defendant at all, and thus Plaintiff’s request for punitive damages alleged against Moving Defendant is improper.

Therefore, Moving Defendant’s motion to strike is GRANTED.

E. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

While the court notes that Plaintiff has previously amended his complaint twice, the instant demurrer is the first challenge to the sufficiency of Plaintiff’s complaint for which the court has issued a ruling. Therefore, the court finds that there is a reasonable possibility of Plaintiff successfully amending the SAC by specifying which conduct is attributable to the Moving Defendant and showing a pattern of conduct at the relevant property.

Leave to amend as to the third cause of action is DENIED.

Accordingly, the court GRANTS Plaintiff leave to amend.

CONCLUSION

Based on the foregoing, Moving Defendant's special demurrer for uncertainty is SUSTAINED in its entirety with leave to amend as to the fourth cause of action only. Moving Defendant's motion to strike is GRANTED with leave to amend.

Plaintiff is to file and serve any amended pleading within 30 days. Moving party is ordered to give notice of ruling.